

Palau International Ship Registry



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MARINE CIRCULAR 148.2

To: P&I INSURANCE COMPANIES, SHIP OWENERS, MANAGERS, DEPUTY REGISTRARS

**Subject: APPROVED P&I CLUBS / INSURANCE COMPANIES / FINANCIAL SECURITY PROVIDERS.
PROCEDURES AND REQUIREMENTS FOR APPROVAL & RENEWAL.
POLICY OF CANCELLATION OF FINANCIAL SECURITY.**

1. Reference

- 1.1 Marine Notice 145: *Nairobi International Convention on The Removal of Wrecks 2007*, as amended
- 1.2 Marine Notice 146: *Athens Convention Certificate Relating to The Carriage of Passengers and Their Luggage by Sea 2002*, as amended
- 1.3 Marine Notice 131: *Certification Requirements for Compliance with The International Convention on Civil Liability for Bunker Oil Pollution Damage 2001*, as amended
- 1.4 Marine Notice 203 – *MLC, 2006 Title 2.5 Repatriation*, as amended

2. Purpose

- 2.1 This Marine Circular provides the List of the Approved P&I Clubs/Insurers and advises for the provisions required by the Palau Ship Registry Administrator for the approval/revalidation of Insurance Companies for the issuing of Financial Security Certificates, as needed for the compliance of the:
 - a. Civil Liability for Oil Pollution Damage, 1969, renewed in 1992 and often referred to as the CLC Convention
 - b. Nairobi International Convention on The Removal of Wrecks 2007 and referred to as the WRC Convention.
 - c. Athens Convention Certificate Relating to the Carriage of Passengers and Their Luggage by Sea 2002 referred to as the PAL Convention.



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- d. Certification Requirements for Compliance with The International Convention on Civil Liability for Bunker Oil Pollution Damage 2001
- e. Maritime Labour Convention (MLC) 2006 as amended, Standard A2.5.2 & Standard A4.2.1, paragraphs 1(b), 8, 9, 10, 11, 12, 13, 14.

3. Applicability

- 3.1 This Marine Circular applies to ships registered with the Palau Flag to which the Conventions mentioned in paragraph 2 above apply.
- 3.2 The P & I Clubs / insurance companies / financial security providers that are not listed and would like to apply for acceptance by the Palau International Ship Registry, may submit relevant inquiry, according to section 6 of this Marine Document.

4. General Information

- 4.1 The Palau Ship Registry Administrator follows an evaluation process for acceptance of P&I clubs / Insurance Companies / Financial Security Providers, their branches or subsidiaries, providing financial security pursuant to:
 - a. Article 12 of the WRC Convention.
 - b. Article 7 of the BCC Convention.
 - c. Article VII of the CLC Convention.
 - d. Article 4bis of the PAL Convention
 - e. Maritime Labour Convention (MLC) 2006 as amended, Standard A2.5.2 & Standard A4.2.1, paragraphs 1(b), 8, 9, 10, 11, 12, 13, 14.

5. Process of Approval of P&I clubs / Insurance Companies / Financial Security Providers

- 5.1 P&I clubs / Insurance Companies / Financial Security Providers, their branches or subsidiaries, seeking acceptance from the Palau Ship Registry Administrator for the issuance of Blue Cards shall submit Application ([A.050 – Application For P&I Approval](#)) along with all the supporting documentation requested in Application's Part 2 and Part 3.
- 5.2 The above Application should be sent via email to info@palaureg.com & technical@palaureg.com.



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- 5.3 Upon satisfactory review of the above information, the P&I Clubs / Insurance Companies / Financial Security Providers will be approved as accepted for a period of five (5) years (or otherwise agreed), subject to renewal, from July 20, 2024.
- 5.4 Formal acceptance shall be communicated by the Palau Ship Registry Administrator, by providing relevant Approval Letter (L.036).
- 5.5 The Approved P&I Club / Insurance Company / Financial Security Provider will be included in the List of approved P&Is.

6. Approval Fees

- 6.1 The Administration Fee for the evaluation of the application is USD 250.00, which are paid to the Palau Flag Administrator in advance. Upon successful review of the applicant's credentials, relevant approval will follow with no further charges.

7. Issuance of Blue Cards

- 7.1 Blue Cards and Financial Securities shall include the following details:

- 7.1.1 a number to ensure traceability to the correspondent Certificates issued by this Administration,
- 7.1.2 registered owner shall be the same indicated in the registry certificate. In case of C/O this may also be included. For MLC 2006 "shipowner" as defined by the Convention is accepted on the correspondent financial securities.
- 7.1.3 Blue Cards or Financial Securities shall be reissued by the P&I Clubs, insurance companies or financial security providers due to change of ship's, shipowner, gross tonnage (for WRC 2007) and any other reasons; therefore, previous Financial Securities shall be cancelled as well as the correspondent Certificate (if one exists).
- 7.1.4 The certificate or other documentary evidence referred to MLC, 2006 Financial Security for cases of abandonment required under the Standard A2.5.2 shall include the following information:

- Name of the ship,



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- Port of registry of the ship,
- Call sign of the ship,
- IMO number of the ship,
- Name and address of the provider or providers of the financial security,
- Contact details of the persons or entity responsible for handling seafarers' requests for relief,
- Name of the shipowner,
- Period of validity of the insurance policy, and
- An attestation from the financial security (P&I Club or insurer) meets the requirements of Standard A2.5.2 to the MLC amended.

7.1.5 The certificate or other documentary evidence referred to MLC 2006 Financial Security for shipowners' liability required under the Standard A4.2.1 shall include the following information:

- Name of the ship,
- Port of registry of the ship,
- Call sign of the ship,
- IMO number of the ship,
- Name and address of the provider or providers of the financial security,
- Contact details of the persons or entity responsible for handling seafarers' contractual claims,
- Name of the shipowner,
- Period of validity of the financial security (P&I Club or insurer) y; and
- An attestation from the financial security (P&I Club or insurer) meets the requirements of Standard A4.2.1.

8. Communication of Blue Cards to the Palau Flag Administration

8.1.1 Blue Cards shall be addressed to:



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- 8.1.2 The P & I Clubs or Insurers shall send copies of each financial security certificates, once they are issued for the records of Palau Flag Administration to the following e-mail addresses:
info@palaureg.com and technical@palaureg.com.

9. Period of Approval

- 9.1 P&I Clubs approved by Palau International Ship Registry shall maintain their approval for a period of five (5) years (except otherwise agreed), subject to renewal.
- 9.2 The Palau Flag Administration holds the right to grant approvals of P&I Clubs for a limited period of time, on its discretion, where the approval validity may be less than 5 years, based on the results of the review and evaluation of the initial application or the renewal, as the case may be.

10. Change of credentials of the P&I Club / Insurer

- 10.1 Accepted P&I Clubs, insurance companies or financial security providers changing its name, address, registration number and/or other relevant information must provide the correspondent documents explaining such changes, in order to be provided with updated Approval Letter by this Flag Administration, holding the same validity as per their initial approval.

11. Intermediate Assessment

- 11.1 The Palau Flag Administrator, at its discretion, will conduct Intermediate Assessment / Evaluation of the Approved P&I Company.



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12. Renewal Process

- 12.1 Upon the expiration of the 5-years period/validity, the P&I Company shall apply for renewal of approval and submit necessary documentation to Palau Flag Administration. The Flag Administration is to review anew the credentials and to evaluate the P&I Company status.
- 12.2 P&I clubs / Insurance Companies / Financial Security Providers, their branches or subsidiaries, seeking renewal of approval from the Palau Ship Registry Administrator for the issuance of Blue Cards shall submit Application ([A.050 – Application For P&I Approval](#)) along with all the supporting documentation requested in Application's Part 3 and Part 4.
- 12.3 The above Application should be sent via email to info@palaureg.com & technical@palaureg.com.
- 12.4 Additional requirements might be requested by this Flag Administration, as deemed necessary.
- 12.5 Upon satisfactory review of the above information, the approval of P&I Clubs / Insurance Companies / Financial Security Providers will be renewed for a period of another five (5) years, subject to the next renewal, or for limited period, as the case may be.
- 12.6 Formal renewal of approval shall be communicated by the Palau Ship Registry Administrator, by providing relevant Approval Letter (L.036).
- 12.7 The Approval of P&I Companies, which have not applied for renewal of approval by providing the above evidence required, shall be ex-officio suspended of validity, until the renewal process has been successfully completed.

13. Revalidation Fees

- 13.1 The fee for the evaluation and renewal is USD 250.00.

14. Policy of Cancellation of Blue Cards

- 14.1 The financial security related to CLC 1992, BCC 2001, PAL 2002 and WRC 2007 shall not cease to be valid before the end of the period of validity of the financial security unless the P & I Club, insurance companies or financial security providers shall notify the termination or cancellation of at least 3 (three)



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months prior the date on which the termination or cancellation will take effect. This notice shall be given to the Palau Flag Administrator to the following email addresses – info@palaureg.com and technical@palaureg.com.

- 14.2 Coverage shall be maintained in full force and effect for a vessel to maintain its registration under the Republic of Palau Flag. Such coverage shall not be cancelled, altered, or amended without 30 days' prior written notice and with 10 days' notice for no-payment of premium, having been furnished to the Palau Ship Registry Administrator by the provider of the financial security.

P&I approved by the Palau Flag Administration that have issued Proof of Liability Insurance to Palau registered vessels shall inform the Palau Flag Administration 30 days before the cancellation of a Blue Card in order to allow this Administration to properly take measures to ensure that the owner/manager takes the required steps to maintain the necessary liability on board.

Additionally, all P&I Clubs approved by Palau Flag Administration are requested to inform the Palau International Ship Registry Head Office immediately upon the cancellation of such Blue Cards.

The communication informing of the cancellation shall be provided within 24hrs from the cancellation issued and should be sent via email to: info@palaureg.com and technical@palaureg.com, clearly stating the cancellation of financial security.

- 14.3 Blue Cards that are canceled due to a change of name of the ship or due to change of managers, or any other reason, shall be re-issued by the Insurance Company (see section 8.1.3).
- 14.4 The financial security related to MLC 2006 shall not cease to be valid before the end of the period of validity of the financial security unless the P & I Club, insurance companies or financial security providers has given prior notification of at least 30 (thirty) days. This notice shall be given to the Palau Flag Administrator to the following email addresses: info@palaureg.com and technical@palaureg.com.



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14.5 A monetary penalty up to 5,000 USD may be imposed to the Owner for non-compliance with the requirements of the Section 15 of the present Marine Document.

15. Contact

15.1 Any inquiries concerning the subject for this Marine Circular should be directed to the Palau Ship Registry Administrator at technical@palaureg.com.

15.2 List of approved P&I Companies can be found at the PISR website www.palaureg.com

This Marine Circular precedes the Marine Circular 148.1 and replaces Marine Notice 170.1

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